

or usual liability, or from anything evil or injurious; or freedom from ordinary restraints, undue freedom, licence.

OPINIONS OF ENGLISH LAWYERS.

For the meaning of immunity in law I have looked diligently, as far as my time and the resources in hand permit, but could not find a satisfactory one. I do not know whether there are monographs treating the subject. I have searched about 120 books old and new, especially new, written in relation to English constitution, crown, king, government, privilege, &c., and also books on criminal law, criminal

“As to England, the report of Sir Maurice Hill states that there could be no proceedings before the English judicature either by way of action in personam or by way of action in rem in respect of any supplies, or of any salvage services rendered to the ships of a foreign state or in respect of damages caused by such ships, even when they are managed commercially.”

To us what Sir R. Phillimore has said in the *Parlement Belge* when that case came before him is reasonable, but it seems not to be in accordance with English law and was overruled by the court above. He said:

“It seems to me clear that by the expression ‘public ship of the government,’ he (party) meant a ship of war, and not any vessel employed by the Government. But even if the term could be treated as more comprehensive, and as including public ships such as I referred to, sent by the Government on exploring expeditions, it would not include vessels engaged in commerce, and whose owner is, to use the expression of Bynkershoek (*De Leg. Mercatore*, ed. 1730, vol. 6, p. 500), ‘strenue mercatorem agens.’ Upon the whole, I am of opinion that neither upon principle, precedent, nor analogy of general international law, should I be warranted in considering the *Parlement Belge* as belonging to the category of public vessels which are exempt from process of law and all private claims.” (*Asp.* 4, p. 42.)